



Constructive Discharge

Overview

Constructive discharge occurs when an employer, through its unlawful discriminatory behavior, makes an employee's working conditions so difficult that any reasonable person in the employee's position would feel compelled to resign or accept an early retirement.

This Quick Start Guide covers the following Key Points:

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Key Points

These key-point summaries cannot reflect every fact or point of law contained within a source document. For the full text, follow the link to the cit source. The references to **Hadley** in this Quick Start Guide are to federal employment law expert Ernest Hadley's treatise, *A Guide to Federal Sector Equal Employment Law and Practice* (Dewey Publishing, Inc.), to which **cyberFEDS®** has exclusive Web rights.

Timeliness

- The U.S. Supreme Court vacated a decision of the 10th U.S. Circuit Court of Appeals and held that the 45-day limitations period in a constructive discharge claim begins to run when an employee gives notice of his resignation, not on the effective date of his resignation. *Green v. Postmaster General*, [116 LRP 21442](#), 136 S. Ct. 1769 (2016).

Establishing constructive discharge

- "The central question in a constructive discharge case is whether the employer, through its unlawful discriminatory behavior made the employee's working conditions so difficult that any reasonable person in the employee's position would feel compelled to resign." *Solomon v. Department of the Navy*, [108 LRP 14821](#), EEOC No. 0720070071 (EEOC 2008).
- **Hadley:** The Commission succinctly stated the parameters of a constructive discharge claim in *Hoang v. U.S. Postal Service*, [113 LRP 18555](#), EEOC No. 0120130454 (EEOC OFO 2013): A constructive discharge occurs when an employee resigns from his employment because he is being subjected to unlawful employment practices. If the resignation is directly related to the agency's unlawful employment practices, it is a foreseeable consequence of those practices and constitutes a constructive discharge. The agency is responsible for a constructive discharge in the same manner that it is responsible for the outright discriminatory discharge of a charging party. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Constructive Discharge](#)
- In order to prevail on a claim of constructive discharge, a complainant must show: "(1) a reasonable person in the complainant's position would have found the working conditions intolerable; (2) conduct that constituted discrimination against the complainant created the intolerable working conditions; and (3) the complainant's involuntary resignation resulted from the intolerable working conditions." *Solomon v. Department of the Navy*, [108 LRP 14821](#), EEOC No. 0720070071 (EEOC 2008), *citing Walch v. Department of Justice*, [95 FEOR 30053](#), EEOC No. 05940688 (EEOC 1995).
- **Hadley:** A constructive discharge doesn't occur in every case where an employee voluntarily resigns because he feels he has been the victim of discrimination. There must be a showing of a deliberate effort to make the employee's work conditions intolerable. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Constructive Discharge](#).
- **Hadley:** No purposeful effort to force an employee's resignation exists when the employee resigns to avoid a legitimate removal. Further, complainant cannot prevail on a constructive discharge claim where he resigns to preserve an entitlement to retirement benefits which he believes would be lost if he was subjected to discipline. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Constructive Discharge](#), *citing Polk v. Tennessee Valley Authority*, [106 LRP 70185](#), EEOC No. 0120063036 (EEOC OFO 2006).
- **Hadley:** Even where the agency's failure to stop sexual harassment is a factor in the employee's decision to resign, it is not a constructive removal where other factors also played a role in that decision. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Constructive Discharge](#).
- **Hadley:** If an agency refuses to provide reasonable accommodation for an employee with a disability, and the employee declines to report work, even though the agency has not provided reasonable accommodation, this does not per se mean the employee is justified in not working. The Commission will analyze the case as it does any other allegation of constructive discharge. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Constructive Discharge](#).

Putting agency on notice of constructive discharge claim

- **Hadley:** Complainants are not required to formally plead "constructive discharge" in their complaints. The EEOC will look at whether the circumstances surrounding the resignation should have put the agency on notice that the action was involuntary. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Constructive Discharge](#).
- A complainant does not need to specifically allege constructive discharge in her complaint. The circumstances surrounding the complainant's resignation or retirement can put the agency on notice that a constructive discharge is being alleged. *Simon v. U.S. Postal Service*, [91 FEOR 3119](#), EEOC No. 05890464 (EEOC 1990).
- However, a complainant must provide facts in her original complaint or at some point during the processing of her complaint prior to the closing arguments, sufficient to put the agency on notice that she is alleging that she was forced to resign from her position. *Brandenberger v. Department of the Army*, [96 FEOR 3035](#), EEOC No. 05940621 (EEOC 1995).
- **Hadley:** When an employee's factual allegations indicate that she is raising a constructive discharge claim, the agency should refer the complainant to an EEO counselor on the allegation of constructive discharge. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Constructive Discharge](#).
- The complainant's case could not be dismissed as moot after she resigned because she stated a claim of constructive discharge that had not been addressed. Specifically, when she made her initial contact with an EEO counselor, she claimed she had been subject to a hostile work environment and could no longer work for the agency. *Russell v. Department of Veterans Affairs*, [106 LRP 573](#), EEOC No. 01A53497 (EEOC OFO 2006).
- Claims that harassment occurred around the time of a resignation or retirement decision can put the agency on notice that the complainant is raising an allegation of constructive discharge. *Furtado v. Department of the Navy*, [91 FEOR 3115](#), EEOC No. 059001 (EEOC 1990).
- The complainant was awarded \$45,000 in compensatory damages for the suffering he endured as a result of a supervisor's racial harassment, but he was not entitled to back pay or reinstatement because he did not raise a claim of constructive discharge. *Powell v. U.S. Postal Service*, [106 LRP 13168](#), EEOC No. 01A50989 (EEOC OFO 2006).
- The complainant was awarded \$5,000 to compensate for his suffering in connection with sex- and age-based harassment. However, although he claimed he was forced to take an early retirement as a result of the agency's actions, he did not raise a claim of constructive discharge, and therefore was not entitled to damages in connection with his premature retirement. *Shaffer v. Defense Finance Accounting Service*, [106 LRP 21306](#), EEOC No. 01A52062 (EEOC OFO 2006).
- The agency was on notice that the complainant was raising a claim of constructive discharge because his appeal brief contained allegations that retirement was forced on him. As such, the agency should have afforded the complainant an opportunity to obtain EEO counseling regarding his allegation of constructive discharge. *Yancey v. Department of Health and Human Services*, [95 FEO 30244](#), EEOC No. 05940301 (EEOC 1995).

Mixed case constructive discharge complaints

- **Hadley:** One area that has caused much confusion in the area of mixed cases is that of so-called "constructive adverse actions." A constructive adverse action occurs when an employee chooses to subject himself or herself to an employment action that would otherwise be within MSPB jurisdiction but, as a practical matter, the choice is involuntary. The most common constructive adverse action is a constructive removal or discharge. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Constructive Adverse Actions](#).
- If a complainant specifically raises a constructive discharge allegation in his formal complaint and has resigned from his position at the time the complaint is filed, then the complaint should initially be addressed by the MSPB, which ordinarily has jurisdiction over matters of termination and discharge. *Simon v. U.S. Postal Service*, [91 FEOR 3119](#), EEOC No. 05890464 (EEOC 1990).
- If the MSPB denies jurisdiction based on its determination that a retirement was voluntary, a constructive discharge case is to be processed as a "non-mixed" matter. *Graham v. Department of the Treasury*, [99 FEOR 3324](#), EEOC No. 03990083 (EEOC 1995).
- Although issues concerning constructive discharge are ordinarily within the jurisdiction of the MSPB, the EEOC may assume jurisdiction over a constructive discharge claim "when it is so firmly enmeshed in the EEO process that it would unduly delay justice and create unnecessary procedural complications to remand it to the MSPB." *Lucas v. Department of the Navy*, [99 FEOR 3057](#), EEOC No. 01965130 (EEOC 1998).
- **Hadley:** In *Blount v. Secretary of Homeland Security*, [109 LRP 69758](#), EEOC No. 0720070010 (EEOC OFO 2009), *req. for recon. denied*, EEOC No. [110 LRP 24744](#), 0520100148 (EEOC OFO 2010), a constructive discharge case, the complainant claimed that after suffering a stroke, the agency failed to accommodate him by allowing him to work at home during his recovery causing him to apply for and receive disability retirement. An EEOC administrative judge determined that the constructive discharge claim was "inextricably intertwined" with the discrimination claim and "firmly enmeshed" in the EEO process and retained jurisdiction over both claims. On appeal, the EEOC "took a different approach to one of the classic mixed case constructive discharge scenarios that, if applied generally, could significantly alleviate the jurisdictional problem in constructive adverse action cases." [Hadley Guide to Federal Sector Equal Employment Law and Practice: Constructive Adverse Actions](#).
- **Hadley:** The EEOC found that "[a]lthough the AJ characterized complainant's claim as one of constructive discharge, as stated above, we find that this claim is more properly classified as a denial of reasonable accommodation resulting in the inability to work. As such, the proper remedy following a finding that the complainant was not reasonably accommodated is to order the agency to provide a reasonable accommodation to complainant and reinstate him to the position in question, or to a substantially equivalent position." *Blount v. Secretary of Homeland Security*, [109 LRP 69758](#), EEOC No. 0720070010 (EEOC OFO 2009), *req. for recon.*

denied, EEOC No. [110 LRP 24744](#), 0520100148 (EEOC OFO 2010). [Hadley Guide to Federal Sector Equal Employment Law and Practice: Constructive Adverse Actions](#).

- The EEOC found the complainant was constructively discharged when the agency denied him reasonable accommodation, which compel him to retire. In making its decision, the EEOC noted that the MSPB had dismissed the complainant's appeal, finding that he left the agency voluntarily and was not constructively discharged. However, the EEOC found that the "voluntary" determination by the MSPB in dismissing the appeal did not preclude the EEOC from adjudicating the merits of a constructive discharge claim and did not require the EEOC to adopt the MSPB's finding. *Arnold C. v. U.S. Postal Service*, [115 LRP 54643](#), EEOC No. 0120093856 (EEOC OFO 2015).

Successful constructive discharge claims

- A restaurant manager at an agency air base was subjected to unlawful harassment based on his sexual orientation when a server at the restaurant repeatedly called him a derogatory name used to insult gay men and threatened him with bodily harm. Because he reasonably decided to resign before the server made good her threats to harm him, the EEOC concluded that he was constructively discharged from position. *Silas T. v. Department of the Air Force*, [121 LRP 19112](#), EEOC No. 2019003996 (EEOC OFO 2021).
- A technical editor for the Navy was denied telework as reasonable accommodation for her irritable bowel syndrome, which led to her constructive discharge. The EEOC found a reasonable person in the editor's position would have found the agency's actions intolerable. *Sandra A. v. Department of the Navy*, [121 LRP 32948](#), EEOC Nos. 2020001588, 2021002131 (EEOC OFO 2021).
- The complainant was constructively discharged from her advanced medical support assistant position when the agency failed to reasonably accommodate her attention deficit disorder, anxiety, and depression by placing her in a GS-5 position for which she was qualified. She was awarded \$20,000 for the mental and emotional harm she suffered as a result of being forced to resign in lieu of termination. *Lydia F. v. Department of Veterans Affairs, Veterans Health Administration*, [121 LRP 32928](#), EEOC No. 2020001007 (EEOC OFO 2021).
- **Hadley:** The EEOC found a constructive discharge where the agency's CEO "pursued a vendetta" against the complainant in *Jacqueline C. v. Secretary of Health and Human Services*, [120 LRP 20892](#), EEOC No. 2019002196 (EEOC OFO 2020). The EEOC noted that after the CEO learned that the complainant engaged in the EEO process, the CEO threatened the complainant with disciplinary action, tried to demote her, and denied her a retention incentive. The EEOC detailed the "intolerable conditions" leading to the complainant's resignation. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Constructive Discharge](#).
- Rejecting an administrative judge's credibility determinations, the EEOC found the complainant's supervisor harassed and terminated her because of her pregnancy. Further, although the complainant was reinstated, she was later constructively discharged because the agency refused to place her with a different supervisor at the end of her maternity leave. *Kiera H. v. Department of the Air Force*, [115 LRP 9438](#), EEOC No. 0520140092 (EEOC OFO 2015).
- Rejecting an administrative judge's credibility determinations, the EEOC found the complainant's supervisor harassed and terminated her because of her pregnancy. Further, although the complainant was reinstated, she was later constructively discharged because the agency refused to place her with a different supervisor at the end of her maternity leave. *Kiera H. v. Department of the Air Force*, [115 LRP 9438](#), EEOC No. 0520140092 (EEOC OFO 2015).
- The complainant was subjected to sex discrimination when he was reassigned to a nonequivalent position while he was on FMLA leave at the birth of his second child. The EEOC found he was subsequently constructively discharged when he resigned rather than accepting the reassignment, which placed him in a position that exposed him to staff members who harassed him for reporting the abuse of a prison inmate. He was awarded almost nine years of back pay, less mitigation. *Oest v. Department of Justice, Federal Bureau of Prisons*, [111 LRP 15554](#), EEOC No. 0720110002 (EEOC OFO 2011).
- The complainant was constructively discharged when he felt compelled to resign because management and coworkers created a hostile work environment by refusing to cooperate in making the reasonable accommodation for his hearing loss effective. *Wagner v. Department of Transportation, Federal Aviation Administration*, [110 LRP 72899](#), EEOC No. 0120103125 (EEOC OFO 2010).
- The complainant was awarded \$150,000 in nonpecuniary damages for the harm caused by her supervisor's discriminatory harassment at the complainant's return to work after a serious arm injury. In part, the supervisor gave her work beyond her medical restrictions, strictly monitored her, and told her not to expect special treatment when she returned to work after additional surgery. The supervisor's harassment led to the complainant to resign on the recommendation of her psychiatrist. *Solomon v. Department of the Navy*, [108 LRP 14821](#), EEOC No. 0720070071 (EEOC 2008).
- The complainant was awarded \$130,000 in nonpecuniary damages for the significant emotional distress he suffered from more than two years of race-based harassment that eventually forced him to take an early retirement. The constant harassment included aggressive, threatening behavior, insulting names, "make work" assignments, and racial remarks. *Terban v. Department of Energy*, [108 LRP 20919](#), EEOC No. 0720040117 (EEOC OFO 2008).
- The complainant was subjected to constructive discharge when he was forced to accept disability retirement when the agency failed to determine whether his disability could be accommodated. *Henry v. U.S. Postal Service*, [99 FEOR 3254](#), EEOC No. 01965235 (EEOC 1999).

Unsuccessful constructive discharge claims

- A human resources director was subjected to reprisal when a contract consultant made comments that were reasonably likely to dissuade a reasonable employee from engaging in EEO activity. However, the director's constructive discharge claim failed. While she found her

working conditions difficult, the EEOC found she did not establish that the conditions were so intolerable that she was forced to resign.

Angeles C. v. Department of Agriculture, Food and Nutrition Service, [121 LRP 26393](#), EEOC No. 2020001072 (EEOC OFO 2021).

- The Department of Veterans Affairs appropriately determined that the complainant was not subjected to sex discrimination when a change her work schedule created a child care issue that led to her resignation. The EEOC found there was "no question that the lack of available daycare options" during the complainant's first duty hour was a hardship for her, but concluded that this inconvenience did not create the intolerable working conditions that would amount to a constructive discharge. *Complainant v. Department of Veterans Affairs*, [0120133059](#), [115 LRP 7186](#) (EEOC OFO 2015).
- The complainant was subjected to a hostile work environment when a coworker sexually harassed him. However, he was not constructively discharged because, while the harassment may have been a factor in his resignation, the EEOC found a serious car accident and a difficult commute were the predominant reasons for his resignation. *Miller v. Department of Veterans Affairs*, [111 LRP 41140](#), EEOC No. 0120093073 (EEOC OFO 2011).
- The complainant, a federal air marshal, was subjected to discrimination on the basis of her sex by a superior who took adverse actions against her and harassed her with degrading and humiliating remarks during a meeting. However, her resignation wasn't a constructive discharge because the difficulties she faced when she returned to work after maternity leave were not so intolerable that she had no choice but to resign. *Cestero v. Department of Homeland Security, Transportation Security Administration*, [110 LRP 25966](#), EEOC No. 0120080771 (EEOC OFO 2010).
- Although the complainant prevailed on her claim that she was not selected for a promotion as a result of discrimination, her claim that her retirement was a constructive discharge failed. Her application for a voluntary separation incentive program and her decision to delay her retirement were not indicative of someone who faced intolerable work conditions. *McCutcheon v. Federal Deposit Insurance Corporation*, [110 LRP 15538](#), EEOC No. 0120081316 (EEOC OFO 2010).
- A complainant who was unable to come to work because of a mental condition, and who could not show how she can be accommodated in her own position or a position to which she could be reassigned, was not a qualified individual with a disability. Further, she was not constructively discharged, but took a disability retirement because she was unable to come to work. *Solomon v. Department of Agriculture*, [107 LRP 48115](#), EEOC No. 0320070101 (EEOC OFO 2007).
- The complainant was not forced to resign from her position as a community health nurse during her probationary period because of her race or age. Although she claimed her supervisor harassed, intimidated and ridiculed her, and that she was denied proper training, there was no evidence that her work situation was so intolerable that she was forced to resign. Instead, the evidence showed that despite much training the complainant's work was inadequate, requiring the supervisor to monitor her closely. Coworkers testified that they never saw her supervisor belittle or harass her. *Haskin v. Department of Health and Human Services*, [107 LRP 4289](#), EEOC 01200637501 (EEOC OFO 2007).
- In order to prevail on a claim of constructive discharge, a complainant must show her work conditions were so intolerable that she was forced to resign. The evidence showed that the complainant resigned in lieu of being terminated for poor attendance, poor performance and disruptive behavior. She asserted that her work environment exacerbated her asthma, but the agency's air quality report refuted this. She was offered a face mask as an accommodation, and she did not indicate that it was ineffective. *Pernell v. National Archives and Records Administration*, [106 LRP 65346](#), EEOC No. 0120051935 (EEOC 2006).
- The complainant claimed her supervisor subjected her to harassment on the bases of her race, national origin, and prior EEO activity and she had no choice to resign. However, the evidence did not show that her working conditions were intolerable. *Reina v. Department of the Navy*, [106 LRP 5040](#), EEOC No. 01A46191 (EEOC OFO 2006).
- Although the agency discriminated against the complainant when it refused to waive a portion of her training as a reasonable accommodation, she was not constructively discharged because she could have continued working while she challenged the agency's decision. Accordingly, she was not entitled to reinstatement. *Rosenthal v. Immigration and Naturalization Service*, [96 FEOR 1314](#), EEOC No. 01960791 (EEOC OFO 1998).
- The complainant was denied reasonable accommodation in a transitional clerk position, but should have continued to work in the less desirable casual clerk position she was offered while she disputed the placement. Her working conditions were not intolerable, and the agency legitimately chose not to reappoint her based on her refusal to work in the casual clerk position. She was not constructively discharged. *Greer v. U.S. Postal Service*, [101 FEOR 3051](#), EEOC Nos. 01976756, 01976792 (EEOC 2001).
- The complainant was discriminatorily reassigned, but the treatment she received in her new position was not hostile such that her subsequent retirement was a constructive discharge. *Hasty v. Army and Air Force Exchange Service*, [97 FEOR 3219](#), EEOC No. 01952006 (EEOC 1997).
- Although the complainant was subjected to sexual harassment between January and June 1986, the EEOC found no connection between the harassment and the complainant's voluntary resignation two years later. *Newman v. Tennessee Valley Authority*, [96 FEOR 3219](#), EEOC No. 01941973 (EEOC 1996).

Other Resources

- [Hadley Guide to Federal Sector Equal Employment Law and Practice: Chapter 18 -- Personnel Actions, Subchapter 01 -- Disciplinary Actions, Section B -- Constructive Discharge](#)
- [Hadley Guide to Federal Sector Equal Employment Law and Practice: Chapter 20 -- EEO Alternatives, Subchapter 02 -- Mixed Cases Before the Merit Systems Protection Board, Section B](#)

[Jurisdiction of the MSPB, Subsection 05 -- Constructive Adverse Actions](#)

- [Hadley Guide to Federal Sector Equal Employment Law and Practice: Chapter 15 -- Reasonable Accommodation and GINA, Subchapter 01 -- Overview of Reasonable Accommodation and Undue Hardship, Section B -- Definition of Reasonable Accommodation, Subsection 03 -- Constructive Discharge](#)

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